
DIPLOMATIC WORKING DOCUMENT — MODULAR ANNEX

ANNEX E

U.S. Assurance and Dispute Resolution Protocol

*Procedural Safeguards, Transparency Commitments, and
Expedited Binding Arbitration for U.S.-Iran Disputes*

MODULAR · SELF-CONTAINED · INCORPORABLE BY REFERENCE

MOU PERTAINING TO PEACE (V7.0) · JUNE 2026

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CONTENTS

Purpose

Preamble (Operative, Binding)

Article 1 — Non-Resumption of Nuclear-Related Sanctions

- 1.1 Pledge (Binding, with Exception)
- 1.2 Prohibition on Pretextual Re-imposition
- 1.3 PCA Arbitration for Bad-Faith Re-imposition

Article 2 — No Military Strikes Against Iranian Nuclear Facilities

- 2.1 Political Assurance (Non-Binding, Recorded)
- 2.2 No Legal Binding Effect
- 2.3 Notification and Consultation

Article 3 — Binding Dispute Resolution for U.S.-Iran Disputes Over U.S. or Israeli Violations

- 3.1 Scope
- 3.2 Expedited Timeline
- 3.3 Remedies
- 3.4 Israeli Actions Not Attributable to the United States

Article 4 — Relationship to Other Annexes

Article 5 — Duration

Article 6 — Incorporation by Reference

Practical Note for Negotiators (Informative)

Signature Block

Purpose

Annex E provides a structured, verifiable framework for U.S. assurances that Iran requests, while respecting the constitutional and policy limits the United States articulates. It does not create legally binding no-strike or no-sanctions obligations in areas where the framework architecture excludes U.S. binding commitments. Instead, it establishes procedural safeguards, transparency commitments, and expedited dispute resolution that give Iran meaningful recourse.

The Annex divides into three parts, matching the three missing elements the Parties identified.

Preamble (Operative, Binding)

The Parties recognize that the stability of this MOU depends on predictable U.S. conduct during the 60-day implementation period and beyond. The United States affirms its commitment to the following procedural and substantive assurances, subject to its inherent right to self-defense and its obligations under the MOU's compliance architecture. Any dispute arising under this Annex falls under binding arbitration at the Permanent Court of Arbitration (PCA) in The Hague, using the expedited procedures of Annex O, Article 6.

The framework architecture anchors this Annex in the following interpretive principles:

Present-tense mutual architecture. Each provision in this Annex functions as a feature of the shared framework, binding both Parties equally, rather than a unilateral restraint by one Party for the benefit of the other.

Non-recognition. Nothing in this Annex constitutes recognition of the other Party's government, political system, or regional policies, consistent with MOU Article 1.5.

Framing autonomy. Each Party describes this Annex to its own public in its own terminology; neither Party requires the other to adopt a specific label, consistent with MOU Article 1.7.

Sovereign equality. The framework architecture treats both states as equal sovereign entities. Neither Party subordinates itself to the other through the assurances recorded in this Annex.

Article 1 — Non-Resumption of Nuclear-Related Sanctions

1.1 Pledge (Binding, with Exception)

The framework architecture prohibits the United States from re-imposing, re-designating, or reinstating any nuclear-related sanctions that this MOU suspends or terminates, unless:

- [1] The PCC issues a final, non-appealable determination of a Tier 3 Deliberate Hostile Violation by Iran under Annex T, and
- [2] The 90-day Tier 3 remediation window expires without remediation, or
- [3] The violation involves enrichment above 3.67% or diversion of HEU from dual-key custody, in which case the framework architecture permits the United States to re-impose sanctions immediately while simultaneously referring the matter to the PCC for retrospective review within 72 hours.

1.2 Prohibition on Pretextual Re-imposition

The framework architecture prohibits the United States from invoking a Tier 1 or Tier 2 technical variance as grounds for re-imposing nuclear-related sanctions. Any such attempt is automatically void and the framework architecture classifies it as a Tier 2 material disruption by the United States under Annex T.

1.3 PCA Arbitration for Bad-Faith Re-imposition

If Iran determines that the United States re-imposed sanctions in bad faith or without a valid Tier 3 determination, Iran files a Request for Arbitration with the PCA within 96 hours (4 days). The arbitration panel issues a provisional order within 72 hours. If the panel finds bad faith, the United States reverses the re-imposition within 24 hours and pays Iran's arbitration costs.

For purposes of this Article, "bad faith" includes: (a) re-imposition of sanctions based on a Tier 1 or Tier 2 technical variance disguised as a Tier 3 violation; (b) re-imposition of sanctions after the PCC issues a final determination of no violation; (c) the United States provides no evidence to the PCC that purportedly justifies re-imposition within 24 hours of the re-imposition; or (d) any pattern of conduct that the tribunal finds inconsistent with the object and purpose of Article 1.1.

Note. *This article is not a prohibition on U.S. re-imposition of non-nuclear sanctions (terrorism, human rights, missiles) at any time. Those matters fall outside the scope of this Annex.*

Article 2 — No Military Strikes Against Iranian Nuclear Facilities

2.1 Political Assurance (Non-Binding, Recorded)

The United States records its political commitment that, for the duration of this MOU, the framework architecture excludes U.S. ordering, conducting, or supporting military strikes against Iranian nuclear facilities that are under IAEA safeguards and dual-key custody, except:

- [1] In the exercise of the inherent right of self-defense against an ongoing armed attack originating from Iranian territory that poses an imminent threat of death or serious injury to U.S. personnel or allies, or
- [2] Following a PCC determination of a Tier 3 Deliberate Hostile Violation involving diversion of HEU to weapons-usable form, and after the 90-day remediation window expires without compliance.

2.2 No Legal Binding Effect

This article does not create a legally enforceable obligation under international or U.S. domestic law. It is a political assurance recorded in the joint minutes of the MOU. Each Party characterizes it as a "solemn commitment" or "non-binding statement of intent" according to its domestic framing autonomy (MOU Article 1.7). This Article operates consistently with Article 3.1, which excludes the substantive political assurance in Article 2.1 from arbitration.

2.3 Notification and Consultation

In the event the United States determines that self-defense requires a military strike against a nuclear facility, the United States:

- [1] Notifies Iran through the PCC back-channel (Annex R) within 2 hours of the decision, unless operational security prevents such notification.
- [2] Provides a written explanation to the PCC within 24 hours.
- [3] Participates in an emergency PCC session within 48 hours to review the incident.

Failure to notify does not create a right of retaliation, but the framework architecture permits the Parties to report it to the Guarantor Matrix.

Article 3 — Binding Dispute Resolution for U.S.-Iran Disputes Over U.S. or Israeli Violations

3.1 Scope

Any dispute arising under this Annex or any claim by Iran that the United States violated its obligations under Article 1 of this Annex, or its procedural obligations under Article 2.3 (notification and consultation), or that the United States failed to use its good offices to prevent Israeli actions that materially impair Iran's performance under Articles 2–5 of the MOU, falls under binding arbitration at the Permanent Court of Arbitration (PCA) in The Hague. The substantive political assurance in Article 2.1 is not subject to arbitration, consistent with Article 2.2.

3.2 Expedited Timeline

Step	Deadline
Iran files Request for Arbitration	Within 14 days of alleged violation
PCA appoints three-member tribunal	Within 7 days of filing
Tribunal issues provisional measures (if requested)	Within 48 hours of appointment
Full evidentiary hearing (if needed)	Within 21 days of appointment
Final award	Within 30 days of appointment

3.3 Remedies

If the tribunal finds the United States in breach, it orders:

- [1] Cessation of the violating conduct within 24 hours.
- [2] Restoration of any suspended benefits.
- [3] Payment of Iran's arbitration costs.
- [4] A declaratory finding that the United States breached its obligations.

The tribunal does not order the United States to take military action against Israel or to impose sanctions on Israel. Such orders fall outside the tribunal's jurisdiction.

3.4 Israeli Actions Not Attributable to the United States

For the avoidance of doubt, an Israeli military operation does not constitute a breach by the United States unless the PCA tribunal finds that the United States directed, authorized, or materially supported the operation. The United States' good-offices commitment (MOU Article 13.3 and Side Letter) constitutes a best-efforts political commitment to use its diplomatic influence to discourage Israeli actions that materially impair this MOU. A failure of outcome — i.e., an Israeli strike occurring despite U.S. efforts — is not a breach. However, a refusal by the United States to exercise good offices at all, or a pattern of bad-faith nominal engagement, is arbitrable under this Article.

However, if the United States (i) fails to activate the Tel Aviv Channel or the 72-hour cooling-off period (Article 13.3) following an Israeli strike on a declared nuclear facility, or (ii) refuses to engage in good-offices discussions through the PCC or Pakistan within 48 hours of a written request by Iran, Iran files a dispute under this Article. The tribunal awards only declaratory relief and costs. The tribunal does not order the United States to take military action against Israel or to impose sanctions on Israel.

Article 4 — Relationship to Other Annexes

Annex	Relationship
Annex T (Step-Back / Earn-Back)	A U.S. violation of Article 1 of this Annex (bad-faith sanctions re-imposition) is a Tier 2 material disruption by the United States.
Annex R / R.a (Escalation Buffer)	A U.S. military strike triggers the 72-hour escalation buffer automatically, with Iran's right to self-defense preserved.
Annex O (PCA Arbitration)	All arbitration under this Annex follows Annex O, Article 6 expedited procedures.
MOU Article 8.5 (Clean-Break Withdrawal)	A finding against the United States under this Annex does not automatically terminate the MOU, but Iran withdraws on 14 days' notice if the United States fails to comply with a final arbitral award within 30 days.

Article 5 — Duration

This Annex remains in force for the duration of the MOU. Articles 1 and 3 survive any withdrawal or termination for five years, consistent with Annex IC, Article 3.1.

Article 6 — Incorporation by Reference

This Annex is incorporable into the MOU by the following sentence:

"The Parties adopt Annex E (U.S. Assurance and Dispute Resolution Protocol) as an operative provision of this Agreement. In the event of any inconsistency, Annex E governs with respect to U.S. non-resumption of nuclear-related sanctions, political assurances regarding military strikes, and binding dispute resolution for alleged U.S. or Israeli violations."

Practical Note for Negotiators (Informative, Not Operative)

This framework does not give Iran everything it wants, because the U.S. refused written no-strike guarantees. Instead, it:

- **Codifies the sanctions-re-imposition rule** — binding, with PCA arbitration. This is the most concrete gain for Iran.
- **Records a political no-strike assurance** — not legally binding, but it creates reputational cost and a notification obligation. Iran frames this as a "solemn U.S. commitment" at home.
- **Opens binding arbitration for U.S. failures to de-escalate after Israeli strikes** — a narrow but real pathway for Iran to hold the U.S. accountable for procedural failures.

What the U.S. gets: It preserves self-defense, keeps the no-strike pledge non-binding, and limits arbitration remedies to declaratory relief and costs — no orders to constrain Israel.

If Iran rejects this as insufficient, the fallback is the existing Annex IC (state-to-state commitment) and the Side Letter, with no additional guarantees.

Signature Block (Optional — Side Letter Format)

In witness whereof, the undersigned, being duly authorized by their respective governments, have signed this Annex E: U.S. Assurance and Dispute Resolution Protocol.

Done at _____, this _____ day of _____, 2026, in duplicate in the English language.

For the United States of America:

For the Islamic Republic of Iran:

Signature

Signature

Name / Title

Name / Title

Date

Date

Witnessed by the Joint Secretariat (Muscat):

Signature

Date

**SAFEGUARDS ENDURE. DISPUTES RESOLVE. THE
ARCHITECTURE HOLDS.**

ANNEX E — U.S. ASSURANCE AND DISPUTE RESOLUTION PROTOCOL

MODULAR · SELF-CONTAINED · INCORPORABLE BY REFERENCE